

Court No. - 47

Case :- CRIMINAL MISC. WRIT PETITION No. - 5131 of 2025

Petitioner :- Muzammil @ Meenu And 9 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Qaisar Kamal Ansari

Counsel for Respondent :- G.A., Mukesh Kumar Singh

Hon'ble Siddharth, J.

Hon'ble Mohd. Azhar Husain Idrisi, J.

Lawyers are on indefinite strike. The right to liberty of the petitioners cannot be held hostage on account of the strike of the lawyers.

Put up this case on 16th April, 2025 as fresh case before appropriate bench.

In the meantime, learned A.G.A may obtain instructions in the matter.

Till the next date of listing the petitioners shall not be arrested pursuant to the first information report dated 07.03.2025 as Case Crime No. 225 of 2025, under Sections- 115(2), 352, 351(3), 127(2), 324(4), 310(2), 132, 191(2), 191(3), 190, 121(1) of B.N.S., Police Station- Bahedi, District- Bareilly, subject to cooperation in ongoing investigation.

If on the next date fixed learned counsel for the petitioners do not appear to argue this writ petition, this interim order shall stand automatically vacated without further orders of this court.

Order Date :- 27.3.2025

Rohit

(Mohd. Azhar Husain Idrisi, J.) (Siddharth, J.)

Court No. - 44

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Qaisar Kamal Ansari

Counsel for Respondent :- G.A., Mukesh Kumar Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Vipin Chandra Dixit,J.

1. Heard learned counsel for the petitioners, learned A.G.A. for the State-respondents and Sri Mukesh Kumar Singh, learned counsel appearing for the respondent no. 5.

2. This writ petition has been filed for quashing of the First Information Report dated 07.03.2025 giving rise to Case Crime No. 225 of 2025, under Sections 115(2), 352, 351(3), 127(2), 324(4), 310(2), 132, 191(2), 191(3) 190, 121(1) of Bharatiya Nyaya Sanhita, 2023, Police Station - Bahedi, District - Bareilly.

3. Contention of the learned counsel for the petitioners is that apart from the offence under Section 310(2) of Bharatiya Nyaya Sanhita, 2023, all other sections were punishable by the imprisonment of seven years or less than seven years. He, however, submits that no case for dacoity at all was made out on the perusal of the first information report. Learned counsel for the petitioners states that af it all the respondents were aggrieved by the misuse of electricity by the petitioners then they could have taken recourse to the various provisions of the Electricity Supply Code, 2005 and the Electricity Act, 2003.

4. In view of the submissions made by the learned counsel for the petitioners, we are of the view that the petitioners have made out case.

5. Matter requires consideration.

6. Respondents no. 1, 2 and 3 are represented by learned A.G.A. Respondent no. 5 is represented by Sri Mukesh Kumar Singh. Issue notice to respondent no. 4.

7. Respondents may file counter affidavit within a period of three weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

8. List thereafter.

9. Till the next date of listing or till the submission of police report, whichever is earlier, the petitioners shall not be arrested.

Order Date :- 16.4.2025

M.S. Ansari

(Vipin Chandra Dixit,J.) (Siddhartha Varma,J.)

Court No. - 42

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Qaisar Kamal Ansari

Counsel for Respondent :- G.A., Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Anil Kumar-X, J.

1. List this matter in the 3rd week of July, 2025.
2. Interim order, if any, is extended till the next date of listing.

(Anil Kumar-X, J.) (Mahesh Chandra Tripathi, J.)

Order Date :- 23.5.2025/Mukesh